THE PROSECUTOR GENERAL
versus
TAMBUDZAI YVONNE MUSONI
and
MELUSI PAUL ALOIS MUSONI
and
TAKURA THELMA MUKWESHA
and
TAMEL FAMILY TRUST
and
WATERSHED COLLEGE
and
LUSITANIA PRIMARY SCHOOL
and
REGISTRAR OF DEEDS
and
NOAH MUNONGOVERWA
and
AGNESS MATSVAIRO
and
PETEOUS NDOVORWI
and
PATRICIA MUDZIMBA
and
JOHNSON SITHOLE
and
TARIRO MARVELOUS CHISVO
and
ANTONIO SYLVESTER
and
JUSTICE MASAWI
and
RUWADZANO GLORIA DUBE
and
APRONIA BENDA
and
SAMBIZI ITAI
and
REBECCA JAMBA
and
TENDAI CHIROZVA
and
NYASHA CHIGAMBA

and
TAPIWA GONO
and
DOUGLAS CHAZIRENI
and
MAXWELL MUKARO
and
ELVIS MURAURO
and
DENNIS DZIKITI
and
SARUDZAI KASEKE NYANDUNDU
and
SIMON MAHACHI
and
DEMETRIO MANHANGO
and
DILAN CHIGAMA
and
ALICE MAZIKANA
and
CHARITY MAPIRA
and
LAZARUS MUSAMBA
and
MUNGOFA RUNYARARO

HIGH COURT OF ZIMBABWE
CHIKOWERO AND KWENDA JJ
HARARE, 16 July 2025 and 28 January 2026

Opposed Application

C Mutangadura, for the applicant.
L.C.T Dzoro, for the 2nd respondent
D.Madzivire, for the 10th and 18th respondents.
E.Vengayi, for the 11th respondent.
13th respondent in person.
S.Tafireyi, for the 19th respondent.
A.Nyamukondiwa, for the 20th respondent.
K.Chimiti, for the 21st respondent.
M.Simango, for the 28th respondent.

The 8th, 12th, 15th, 16th,17th, 22nd, 23rd, 24th, 26th, 27th, 29th, 31st, 32nd, 33rd and 34th respondents in default.

CHIKOWERO J:

INTRODUCTION

[1] This is an application for a civil forfeiture order made in terms of S79 as read with S80 of the Money Laundering and Proceeds of Crime Act [Chapter 9:24](the Act).

THE FACTS

[2] The first respondent was, on 1 July 2011 employed as an Office Administration Assistant by the Zimbabwe Revenue Authority (ZIMRA).

She was based at the Harare Port. She remained in that position until her resignation on 25 April 2023 amid investigations into allegations that she had, between January 2022 and March 2023 abused the Government of Zimbabwe's civil servants vehicle import scheme. The scheme exempted specified serving civil servants from paying import duty to ZIMRA in importing vehicles for personal use. The criteria for qualification under the scheme included service as a civil servant for a minimum period of 10 years, that the applicant for rebate on duty should be of a certain grade in the civil service as well as a cut off date by which the vehicle sought to be imported should have been manufactured.

[3] The first respondent, whose duties neither involved the writing, signing nor confirmation of letters of exemption from the payment of duty authored and confirmed several fake rebate letters in favour of non-civil servants who had not applied for exemption from paying import duty as well as, among others, civil servants who had made unsuccessful applications for rebate on duty.

[4] Working in connivance with several other persons the first respondent facilitated the importation of several motor vehicles into this country without payment of duty. The motor vehicles were unlawfully imported into this country because they did not pay duty to ZIMRA. This was made possible by the presentation of the fake rebate letters at the Beitbridge, Plumtree,

Chirundu and Kariba Border posts by those who imported the motor vehicles. ZIMRA lost a huge amount of money through the non-payment of duty on the imported motor vehicles.

[5] There is credible documentary evidence on record that the first respondent authored and confirmed, as authentic, the fake rebate letters in question. Such evidence includes emails between the first respondent and various ZIMRA employees stationed at the various border posts.

[6] The total prejudice to the fiscus was quantified in monetary terms.

[7] In the founding papers, heads of argument and oral submissions, the applicant has asked me to find that the first respondent financially benefitted from the unlawful activity of authoring and confirming, as authentic, the numerous fake rebate letters used in importing the motor vehicles in question. I have no hesitation in making such a finding. The first respondent has not opposed the application for civil forfeiture. She is in default. This means the allegations of unlawful activity made against the first respondent, as well as the evidence tendered in substantiation thereof, stand uncontroverted. In any event, it would be naïve to think that the first respondent was not handsomely rewarded by those who used the fake rebate letters to import the motor vehicles.

[8] The motor vehicles so imported are tainted properties because they did not pay import duty. See Prosecutor General Mpanza and Anor HH58/24.

<u>The US$18 261 HELD IN TRUST BY 5TH RESPONDENT ON BEHALF OF THE 1ST AND 2ND RESPONDENT</u>.

[9] This amount is the remaining balance of the sum of US$28 625 paid to the fifth respondent as advance school fees and levies for the first and second respondent's child who is enrolled by the fifth respondent. The money was paid by the first and second respondents during the period that the first respondent authored and confirmed the fake rebate letters.

[10] As already indicated, the first respondent is in default.

[11] The second respondent, in responding to the application for civil forfeiture, has not shed light on the source of the funds used to pay the advance fees and levies in question. Neither has

he denied that the first respondent used money received as bribes from the motor vehicle importers to pay such fees and levies.

[12] As between the applicant and the fifth respondent, the parties agreed that only the sum of US$18 261 stands to the credit of the first and the second respondent as the difference had already been deducted towards some of the child's fees and levies by the time that the fifth respondent became aware of the application for an order for civil forfeiture of the money the subject of this judgment.

[13] The sum of US $18 261 is proceeds of crime. Its illicit origin was concealed as cash deposit for advance fees and levies for the child.

[14] It will be forfeited to the state.

THE SUM OF US$18 940 HELD IN TRUST BY THE 6TH RESPONDENT ON BEHALF OF THE 1ST AND 2ND RESPONDENTS.

[15] The only difference between this amount and the one dealt with in the preceding paragraphs is that the former was paid to a different school and for another child of the first and second respondents.

[16] It too will be forfeited to the state.

STAND 32309 MABVAZUVA TOWNSHIP, RUWA, GOROMONZI.

[17] The applicant alleges, without evidence, that the first and second respondents acquired and developed stand 32309 Mabvazuva Township using the proceeds of the unlawful activity indicated at para 7 of this judgement.

[18] Besides making the allegation the application has completely failed to adduce any kind of evidence in support thereof.

[19] The only evidence on record in respect of the acquisition and development of the property is adduced by second respondent himself. It has not been controverted by any other evidence because, as I have said no such contrary evidence has been produced. This property was purchased by the first and second respondents from Exodus and Company on 23 March

2018. The purchase price was US$30 208. There is a written agreement of sale in this regard. The acquisition of the property, as was the payment of the purchased price, was therefore made some years before January 2022 (when the first respondent engaged in the unlawful activity that we now know). Further there is abundant documentary and other evidence demonstrating that the development of the property was completed in December 2019.

There are quotations, delivery notes and receipts issued by Lafarge Cement, Beta Bricks, Union Hardware, Much Construction and Engineering, Steelmate Investments, Workskill Water Engineers, among other suppliers of building materials and service providers, to this effect. Forget Muchenje, of Forgmuch Construction Private Limited, deposed to an affidavit stating that the second respondent hired him to construct a house on the stand in question and that he, Muchenje, completed that project in December 2019. Further, he put up pavings on the property in December 2020 at a time when the second respondent and his family had long occupied the property.

[20] Augustine Gaadzikwa, of stand 32041 Mabvazuva Township, Ruwa, is neighbour to the second respondent. He too deposed to an affidavit stating that he finished constructing his own house in 2020 and commenced occupation thereof in February 2020 when the second respondent and his family were already in occupation of the property sought to be forfeited.

[21] The applicant failed to provide any link between the acquisition and development of the property by the first and second respondents and the first respondent's unlawful activity at ZIMRA. Perhaps it is this failure that then prompted the applicant, in the answering affidavit, to take the position that no matter when the property was acquired and developed it must still be forfeited on the basis that there is evidence of the first respondent's involvement in unlawful activities between January 2022 and March 2023.

Besides observing that the applicant could not make a new case in the answering affidavit the point must be made that even that shift could not, and did not establish any nexus between the acquisition and development of the property in 2018 and 2019 and the first respondent's unlawful activities at ZIMRA between January 2022 and March 2023.

[22] That the first and second respondents donated the property to the fourth respondent (a family trust) on 31 March 2023 advances the applicant's case not at all. The concerned respondents were not concealing any proceeds of crime. They were not concealing anything by donating the property to the family trust.

[23] Consequently, the application for an order for the civil forfeiture of Stand 32039 Mabvazuva, Ruwa cannot succeed. It is dismissed.

TOYOTA AQUA REGISTRATION NUMBER AGD 0582 CHASSIS NUMBER NHP102181894

[24] This property was imported using a fake rebate letter.

[25] The record shows that it was purchased by the eighteenth respondent.

[26] However, the deponent to the opposing affidavit resisting the application for the civil forfeiture of the property (who is not the eighteenth respondent) claimed that the eighteenth respondent had since died and that he, the deponent, was the Executor of the estate of the late Sambizi Itai. The date and place of death were not disclosed. The certificate of death was not attached. The DR Number was not mentioned. Copy of the Letters of Administration, to prove that the deponent was indeed appointed as the Executor of the claimed estate, was not attached. Most significant of all, no application was made for the substitution of the Executor, if he is such as the eighteenth respondent. The application for an order for civil forfeiture of the concerned property is not properly before me. It is struck out.

HONDA FIT REGISTRATION NUMBER AGC3004; TOYOTA AQUA REGISTRATION NUMBER AFZ8761 CHASSIS NUMBER NHP10-6158961; TOYOTA PASSO CHASSIS NUMBER NGC 300023864; HONDA FIT REGISTRATION NUMBER AGC4902 CHASSIS NUMBER GP6-3012879; TOYOTA AQUA CHASSIS NUMBER NPH10-2222971; NISSAN Ad van Chassis Number VZNY12-051923; NISSAN NOTE REGISTRATION NUMBER AGC 2772 CHASSIS NUMBER E1282396. TOYOTA WISH CHASSIS NUMBER ZGE 200130152, HONDA FIT REGISTRATION NUMBER AFT 0262 CHASSIS NUMBER GP 11087003;TOYOTA VITZ REGISTRATION NUMBER AFP 9253 CHASSIS NUMBER NSP1302098549; TOYOTA PASSIO REGISTRATION NUMBER AFZ 7099;HONDA FIT REGISTRATION NUMBER AGC 1714

CHASSIS NUMBER GP5 3026073; HONDA FIT REGISTRATION NUMBER AGC 6687 AND TOYOTA BELTA REGISTRATION NUMBER AFV 4546 CHASSIS NUMBER SCP 923002106

[27] All these vehicles are tainted because they did not pay import duty.

[28] They were bought, in that order, by the eighth, twelfth, fourteenth, fifteenth, sixteenth, seventeenth, twenty second, twenty third, twenty fourth, twenty sixth, twenty seventh, twenty ninth, thirty first, thirty second and thirty fourth respondents. All those respondents are in default

[29] The motor vehicles in question are forfeited to the state.

[30] For completeness I mention this. The fake rebate letter used in importing the twenty fourth respondent's vehicle reflected the twenty fifth respondent's name, the twenty ninth respondent's motor vehicle was seized by the ZIMRA while being driven by the thirteenth respondent, the fake rebate letter used in importing the vehicle belonging to the thirty second respondent was issued in the thirty third respondent's name while the fake rebate letter used in importing the thirty fourth respondent's motor vehicle bore one Coaster Mashiri's name.

TOYOTA VANGUARD REGISTRATION NUMBER AGC3602 CHASSIS NUMBER ACA33-5309649

[31] The tenth respondent imported this vehicle using a fake rebate letter bearing the ninth respondent's name.

[32] In an affidavit annexed to the founding papers the ninth respondent said:

> "1. I am a female adult … I am self-employed …
>
> 2. I do not know the respondent in connection with this case.
>
> 3. I have never applied for a rebate to import a motor vehicle under the civil
>
> servants motor vehicle rebate scheme. I am not a civil servant.
>
> 4. I can also confirm that I have never engaged someone to import a motor vehicle under the rebate scheme using my particulars. If anyone used my particulars to import a motor vehicle using my details, that was done without my knowledge."

[33] At the hearing, Mr Madzivire conceded that the tenth respondent does not have a valid defence to the application for forfeiture.

[34] In the circumstances, this motor vehicles is forfeited to the state.

LEGITIMATE OWNER

[35] S 78(1) (a) (ii) of the Act defines a legitimate owner in these words:

"(1) In this Part-

"Legitimate owner," in relation to the owner of tainted or terrorist property or any interest therein, means-

(a) In the case of such property that is the proceeds of a serious offence or terrorist act, a person who-

(i) .....

(ii) acquired the property in good faith and for fair value after the criminal conduct and did not and could not reasonably have known the property was such proceeds."

[36] In Manitho and Anor v The Prosecutor General and Ors SC 19/24 UCHENA JA, writing for the court, said at para 142:

"[142] The factors which qualify one to be a legitimate owner are:

(i) he or she acquired the property for fair value and in good faith.

(ii) after the criminal conduct which tainted the property had been committed.

(iii) when he or she could reasonably not have known that the property was tainted.

These factors should be established by evidence led in the civil forfeiture proceedings and be carefully taken into consideration by the court to avoid forfeiting property genuinely and innocently acquired by third parties without realising that they are buying tainted property."

[37] The need to protect legitimate owners is a statutory requirement. In this regard S 85(1) of the Act reads as follows:

"85 Orders regarding legitimate owners

(1) If, in the course of hearing of an application for a civil forfeiture order, the court is satisfied on a balance of probabilities that any property which is the subject of the application is tainted property or terrorist property and that a person is a legitimate

> owner, the court shall make any order it considers necessary to protect that person's interest in the property."

[38] The twentieth, twenty first and twenty-eighth respondents purchased their respective vehicles at different car sales and on different dates in Harare.

[39] The agreements of sale are part of the record.

[40] Since these vehicles were displayed for sale at car sales, they were available to any member of the public who was interested and able to purchase them. Anybody could have innocently bought these vehicles.

[41] The vehicles had already been imported. Although fake rebate letters were used to import them, the concerned respondents were innocent third parties. They were not party to such importation and were unaware that the motor vehicles were tainted in the manner indicated in this judgment. There is nothing to indicate that the purchase price paid in respect of each vehicle was unreasonably low so as to suggest to a would be purchaser that import duty had not been paid.

[42] The eleventh, respondent had been on the market looking for a vehicle to purchase. In July 2022 she interacted with Baobab Cars Marketing (Pvt) Ltd on facebook as the latter was advertising motor vehicles for sale. She was advised that the purchase price for a Toyota Porte was US$2700, the import duty US$2200 and the inspection fee US$400. In August 2022, she paid the purchase price and the inspection fee in full at some given office in Harare. In December 2022 she then deposited US$1281 towards the duty into Baobab Cars Marketing (Pvt) Ltd's bank account and paid the balance of US$900 to one Forgive Siyawareva as instructed.

[43] She was then introduced to Lloyd Mawadze, an agent at Beitbridge Border Post, who cleared the vehicle after she had paid a further US$1300 "to complete all the paperwork including number plates." Thereafter, the motor vehicle was delivered to her together with the registration book (which bore her name and particulars). As clearly indicated in Ashley Tabvuma-Mandaba's supporting affidavit to the application itself, the eleventh respondent fell victim to the fraudulent conduct of Misheck Chamuka and Shumiraishe Musabayana. The duo, in connivance with the first respondent, used a fake rebate letter bearing the reference number of Sherpard Chitsama's genuine rebate letter to import the concerned vehicle. They pocketed the money which the eleventh respondent had raised for import duty. In para(s) 11 and 12 of his affidavit, Mandaba says:

"11. Misheck Chamuka and Shumiraishe Musabayana generated a fake rebate using the respondent personal details fully aware that she was not a civil servant and did not qualify under Civil Servant Rebate Scheme. An affidavit Statement was then recorded from the respondent stating that she fully paid for the purchase and duty fee of the motor vehicle to Misheck Chamuka and Shumiraishe Musabayana. The respondent only noticed that the vehicle registration book took note that the vehicle was not be sold in 3 years and denies any part in the application of any rebate letter since she is not a civil servant. See attached affidavit statement from Patricia Mudzimba.

12. As a result fraudulent actions by Misheck Chamuka and Shumiraishe Musabayama ZIMRA was prejudiced US$3946.25 being duty."

[44] The Toyota Porte Registration number AFZ4130 Chassis number NSP140-9001120, Honda Fit registration number AGD0455, Nissan Note registration number AGD0453 and the Nissan Note registration number AGC 3384 Chassis number E 12243015 belong to the eleventh, twentieth, twenty first and twenty eighth respondents respectively. All these properties are tainted. But, on a balance of probabilities, I am satisfied that the said respondents are legitimate owners thereof.

[45] I think that the thirteenth respondent is not the legitimate owner of the Toyota Aqua registration number AGD2328 Chassis number HNP10-2271604.

[46] A fake rebate letter bearing the thirteenth respondent's name was used to import the Toyota Aqua mentioned in the preceeding paragraph. The letter purported to have been issued by the Commissioner General of ZIMRA following a written application for rebate of duty by the thirteenth respondent himself. This respondent never applied for rebate of duty but told me in argument that he was referred by a fellow member of the Zimbabwe National Army to one C Jojo who asked for the formers national identify card, military identity card and the purchase price of the motor vehicle so as to prepare the application for rebate of import duty. The thirteenth respondent submitted that he never saw the application for rebate of duty (because Jojo handled it) and does not know whether such application was ever made.

[47] I have said no application for rebate of duty was ever made.

[48] The thirteenth respondent submitted that he never saw the rebate letter and does not know whether same was ever issued by ZIMRA. We now know that a fake rebate letter was used to import the vehicle.

[49] The colleague who is claimed to have referred the thirteenth respondent to Jojo has not been named. No affidavit by that fictitious character has been placed before the court.

[50] Since the thirteenth respondent averred that he is a legitimate owner of the vehicle in question, he should have placed before the court clear evidence to establish, on a balance of probabilities that he;

(i) acquired the property for fair value in good faith.

(ii) after the criminal conduct which tainted the property had been committed.

(iii) when he could reasonably not have known that the property was tainted.

[51] All that he paid was the purchase price. It is incredible to believe that he neither knew whether an application for a rebate letter had been made when it was him who was purchasing the motor vehicle. Even more bizarre is his submission that he did not know the outcome of such an application, if ever it was made. He would benefit from a successful application for rebate of duty. He would pay duty if such an application were rejected. He could not be in the dark. In the circumstances, he benefitted from the use of a fake rebate of duty letter issued in his name. He did not adduce evidence to establish that he acquired the property after the generation of the fake rebate letter and the importation of the vehicle. Neither is there evidence that he could reasonably not have known that the property was tainted. If anything, his feigned ignorance of critical pieces of information, already highlighted in this judgment, shows that he participated in bringing the fake rebate letter into existence and therefore knew that the fake rebate letter would be used to import the vehicle. In a nutshell, the thirteenth respondent not only did not acquire the property in good faith but also failed to adduce evidence to establish the second and third requirements of the legitimate owner defence. He participated in the commission of the criminal conduct which tainted the property. He connived with Jojo and the first respondent to generate and use a fake rebate letter to import the vehicle hence the fraud charge preferred against him before the Magistrates Court at Harare under CRB HRER 1527-28/23.

[52] The Toyota Wish registration number AFW 3414 is tainted because it did not pay import duty.

[53] A fake rebate of duty letter, dated 25 April 2022, was used to facilitate the importation of the vehicle.

[54] The letter is fake because among other things, there is no record in the ZIMRA files that Peterson Moyo, in whose favour the letter was issued, ever applied for rebate of duty to enable him to import the vehicle in question.

[55] Samia Mupita is a Revenue Officer employed by ZIMRA. She is based at Kurima House in Harare. In deposing to an affidavit on 27 June 2024, she said:

"4. During the course of my investigations, I established that Rebecca Jamba approached Tawanda Muzhingi to import a vehicle on her behalf.

5. She indicated that she had no expertise on how to import a vehicle from Japan and Tawanda agreed to do all the importation papers at a fee.

6. Rebecca Jamba paid US$6900 for the purchase of the vehicle.

7. She received her vehicle sometime in 2022 a 2012, Toyota Wish Registration number AFW3414 along with the registration book.

8. The vehicle was and is still registered in the name of Peterson Moyo (Annexure A)

9. According to the ZIMRA Asycuda system, the vehicle was imported by Peterson Moyo on bill of entry ZWCH N1234 of 28 April 2022 using the civil servant rebate and it did not pay duty.

10. There is no record in our files that Peterson Moyo applied for rebate at ZIMRA."

[56] Annexure "A", is the Vehicle Registration Book of the said vehicle. The registered owner is reflected as Peterson Moyo. His passport and phone numbers are given.

[57] In her opposing affidavit the nineteenth respondent states that she purchased the motor vehicle from Moyo. The vehicle was already in this contrary. It had been imported. She does not know how the vehicle was imported and cleared at the border.

[58] I am mindful of the fact that a motor vehicle registration book is not proof that the person reflected therein is the registered owner is the legal owner of such motor vehicle. What this means is that there is a possibility that the nineteenth respondent imported the motor vehicle in question but caused the motor vehicle registration book to be issued in Moyo's name. But that is speculation. It is not evidence.

[69] There was nothing precluding the applicant from adducing documentary evidence of the purchase of this motor vehicle and its subsequent importation. Had that been done this court would have known whether it was Moyo or the nineteenth respondent who purchased the vehicle from Japan, paid the purchase price and imported it.

[60] Paragraphs 4 and 5 of Mupita's affidavit (reproduced at para 56 of this judgment) are not facts. That deponent is not the Court. It is only this Court, after considering such evidence as is placed before it, that could have made a finding of fact that the nineteenth respondent purchased the motor vehicle from Japan and then proceeded to import it into this country. As explained in para 61 above, no primary

evidence was adduced to show who bought the motor vehicle from Japan and proceeded to import it into Zimbabwe. The mere fact that a fake rebate letter was used to facilitate the clearance of the motor vehicle at the border without paying import duty is not evidence that it was the nineteenth respondent who bought the motor vehicle from Japan and proceeded to import the same. Further, there is no explanation why Tawanda Muzhingi's affidavit is not part of the founding papers. That person, if he exists, would have been expected to explain whether he played any role in the purchase and importation of the motor vehicle and, if so, described such role and named his principal.

[61] At the end of the day, I agree with Mr Tafireyi that there is no evidence that the nineteenth respondent participated in the purchase of the motor vehicle from Japan and the importation thereof.

[62] The application for the civil forfeiture of the Toyota Wish registration number 3414 is dismissed.

THE PRELIMINARY POINT

[63] It is convenient that I now deal with the preliminary point raised by the twenty first respondent.

[64] Mr Chimiti, submitted that the application for civil forfeiture of the said respondent's motor vehicle was not properly before the court because there were domestic remedies available to the Commissioner - General of ZIMRA against the importer under the Customs and Excise Act [*Chapter 8:01*] and the regulations made thereunder.

[65] For present purposes, it is not necessary to cite the relevant provisions of that Act, as well as the regulations, and deal with Counsel's submissions at length. It suffices to say this. Sections 79 and 80 of the Money Laundering Act are not subject to any provisions of the Customs and Excise Act [Chapter 8:01]. This means that whatever remedies that may be available to the Commissioner-General of ZIMRA against an importer who has unlawfully brought goods into this country without paying import duty are not a bar to the Prosecutor-General invoking the provisions of ss 79 and 80 of the Money Laundering Act. It ought to be remembered always that an application such as is the subject of this judgment is in rem. It is against the tainted property, and not a person. See s 80(1) of the Money Laundering Act and the case of Matinyarare v the Prosecutor General and Ors SC115/24.

[66] The preliminary point is dismissed.

ORDER

IT IS ORDERED THAT:

1. The application is partially allowed.

2. The following property is forfeited to the State.

(a) The sum of US$18261 held in trust by the 5th respondent on behalf of the first and second respondents.
(b) The sum of US$18940 held in trust by the sixth respondent on behalf of the first and second respondents.
(c) Honda Fit registration number AGC 3004.
(d) Toyota Aqua registration number AFZ 8761.
(e) Toyota Passo Chassis number NGC 300023864.
(f) Honda Fit registration number AGC 4902.
(g) Toyota Aqua Chassis number NPH10-2222971.
(h) Nissan Ad Van Chassis number VZNY12-051923.
(i) Nissan Note registration number AGC 2772.
(j) Toyota Wish Chassis number ZGE 200130152.
(k) Honda Fit registration number AFT0262.
(l) Toyota Vitz registration number AFP 9253.
(m) Toyota Passo registration number AFZ 7099.
(n) Honda Fit registration number AGC 1714.
(o) Honda Fit registration number AGC 6687.
(p) Toyota Belta registration number AFV 4546.
(q) Toyota Aqua registration number AGD 2328.
(r) Toyota Vanguard registration number AGC 3602.

3. The properties listed in the preceding paragraph shall vest in the Asset Management Unit of Zimbabwe with immediate effect.

4. The application for the civil forfeiture of the following properties be and is dismissed:

(a) Stand 32309 Mabvazuva Township, Ruwa, Goromonzi.

(b) Toyota Porte registration number AFZ 4130.

(c) Honda Fit registration number AGD 0455.

(d) Nissan Note registration number AGD 0453.

(e) Nissan Note registration number AGC 3384.

(f) Toyota Wish registration number AFW 3414.

5. The application for the civil forfeiture of the Toyota Aqua registration number AGD 0582 be and is struck out.

6. Each party shall bear its own costs.

CHIKOWERO J:……..

KWENDA J:……

I Agree

The National Prosecuting Authority, applicant's legal practitioners
Nyawo Ruzive Legal Practice, second respondent's legal practitioners
Alex F Associates, eleventh respondent's legal practitioners
Matsika Legal Practitioners, tenth and eighteenth respondent's legal practitioners
Tafireyi and Company, nineteenth respondent's legal practitioners
Ingwani Chipetiwa Group of Lawyers, twentieth respondent's legal practitioners
Machaya and Associates, twenty-first respondent's legal practitioners
Nyikadzino Simango and Associates, twenty-eighth respondent's legal practitioners